Announcements and reminders

- The questions from last week's lecture that I didn't have time to answer are answered on Canvas in the Discussions section. If I missed any questions, please feel free to post them there.

  (Direct messages sent only to me on Zoom might have been lost).

- Both exams will be open-book, meaning you may bring one sheet of paper (handwritten or printed, A4 or smaller, double-sided). You won't have access to the internet or files saved on your laptop.

- **Midterm: Friday, 6 March (Week 7), 2pm-3:30pm, MPSH 1A & 1B, NOT LT11**

  (I'll let you know later which venue applies to which of you.)

  Relevant materials: Weeks 2-5 lectures and readings (Week 6 will be covered by the final).

  We'll use Examplify (you should bring your own laptop—let me know if you can't).

  You must be physically present at the venue.

- Reminder: There will be an in-class briefing about how to use Examplify during the Week 6 lecture.

  (You might want to install Examplify before the briefing if you haven't so you can ask questions)

What makes an action morally right or wrong?

We've so far discussed one approach, consequentialism.

We'll now discuss other approaches, which we'll call non-consequentialism,

and see how they differ from consequentialism

with respect to specific examples, trolley cases.

It is **NOT** the case that whether an act is morally right or wrong depends **ONLY** on consequences.

(Some non-consequentialists think consequences are irrelevant while other non-consequentialists think consequences are one of relevant factors)

Consequentialism

- Consequentialism: whether an act is morally right or wrong depends **ONLY** on consequences (everything else, such as intention, motive, etc. is irrelevant).

- There are different kinds of consequentialism, depending on, among other things, what kinds of consequences are relevant.

e.g.) A hypothetical example of consequentialism: a right action is an action that maximizes the number of cats in the world.

Suppose that there are two actions available to you.
Action A will produce 1 more cat in the world (wrong)
Action B will produce 2 more cats in the world (right)

- (Classic) utilitarianism is an example of consequentialism.

You'll now see three trolley cases.

(assume that the potential victims are all innocent and not at fault)

Which option do you think is morally right (= permissible)?

(reminder: a required action is also permissible)

<How philosophers usually use these terms>

Morally **right** (=permissible = not wrong) actions

Morally **wrong** (=impermissible) actions

Morally **required** (=obligatory) actions :
actions that are wrong not to perform

e.g., keeping a promise

e.g., torture

Morally **supererogatory** actions:
actions that are morally good but not morally required (not wrong not to perform) (going above and beyond one's moral duties)

e.g., jumping on a grenade to save others

e.g., robbery

The rest? Morally neutral actions

e.g., taking a philosophy course, eating ice cream for breakfast

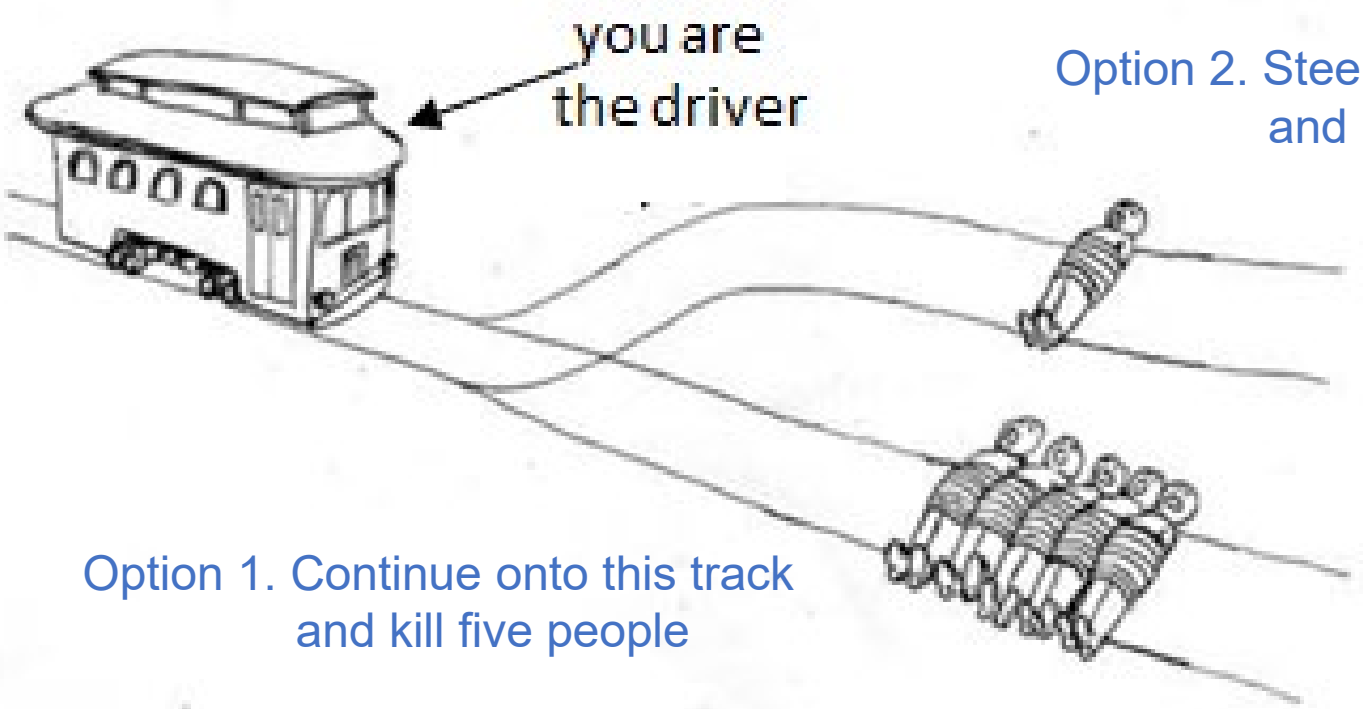
<On classic utilitarianism…>

Morally **right** (=permissible = not wrong) actions

≈ Morally **required** (=obligatory) actions :
actions that are wrong not to perform

Morally **wrong**
(=impermissible) actions

< Case 1. Driver >

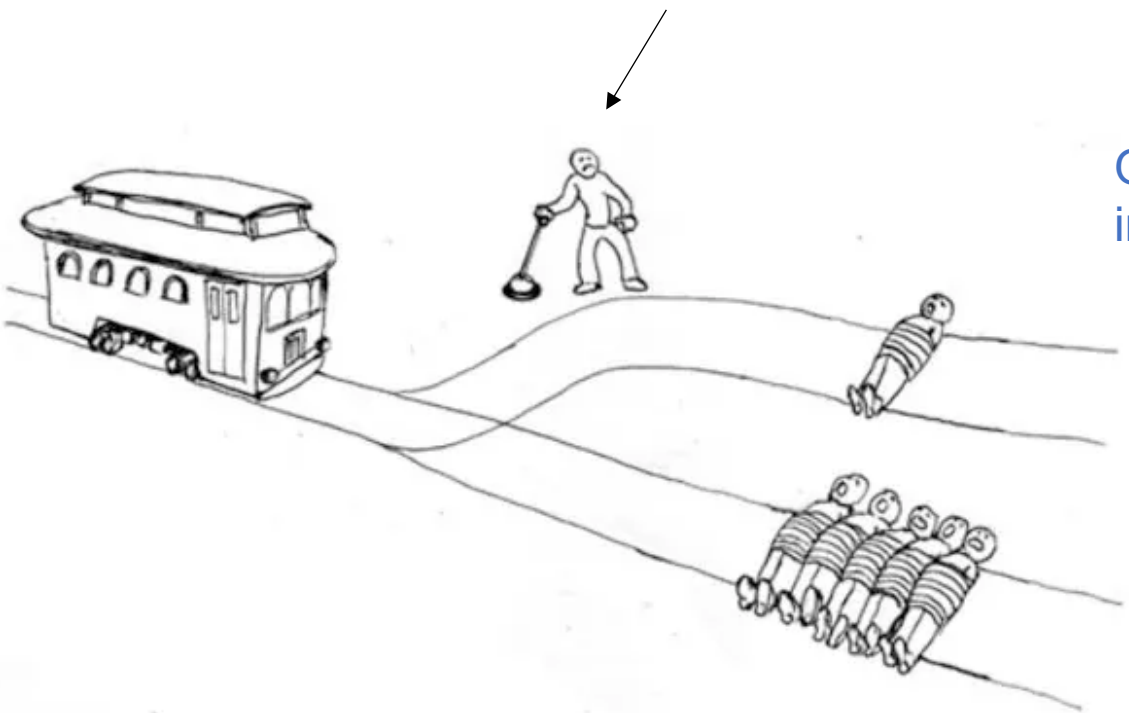


Option 2. Steer onto this side-track and kill one person

Option 1. Continue onto this track and kill five people

< Case 2. Bystander >

You are this bystander

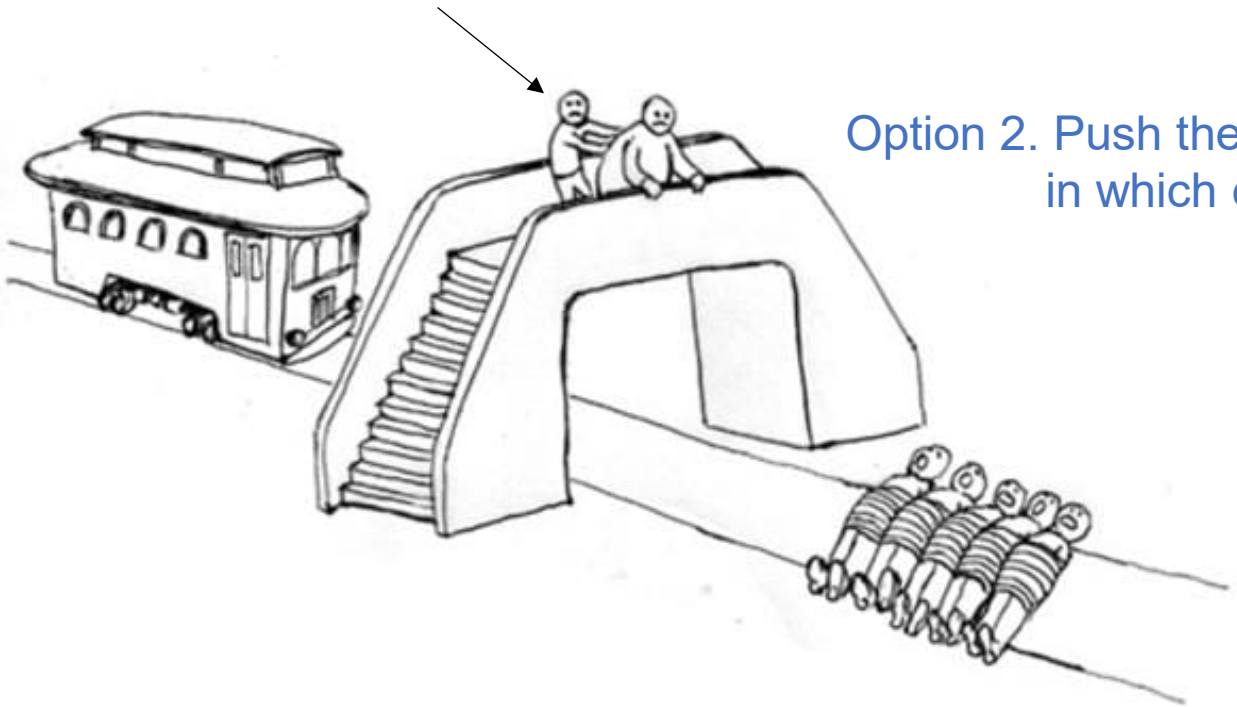


Option 2. Throw the switch,
in which case one person will die

Option 1. Do nothing, in which case five people will die

< Case 3. Bridge or, as it is commonly called, “Fat Man”>

You are this person



Option 2. Push the large person off the bridge, in which case one person will die

Option 1. Do nothing, in which case five people will die

< (What philosophers have taken to be) Common Intuitions >

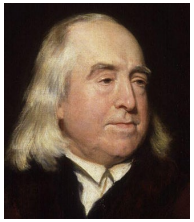
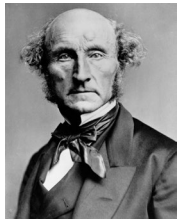
	Option 1 (5 deaths)	Option 2 (1 death)
Driver		✅
Bystander		✅
Bridge	✅	❌

✅ means morally right (=permissible)

❌ means morally wrong (=impermissible)

< What utilitarians would say, assuming no indirect consequences>

	Option 1 (5 deaths)	Option 2 (1 death)
Driver		✅
Bystander		✅
Bridge		✅

That was easy!
Just think about the consequences!

Now, both consequentialists and non-consequentialists have some challenge to meet.

< What utilitarians would say, assuming no indirect consequences>

	Option 1 (5 deaths)	Option 2 (1 death)
Driver		✅
Bystander		✅
Bridge		✅

- The common intuitions conflict with utilitarianism, and this poses a problem for utilitarians (at least to some extent).

- So, utilitarians may want to find some explanations as to why the common intuitions are wrong.

< (What philosophers have taken to be) Common Intuitions >

	Option 1 (5 deaths)	Option 2 (1 death)
Driver		✅
Bystander		✅
Bridge	✅	❌

- The common intuitions conflicts with consequentialism, and that supports non-consequentialism to some extent.

- But non-consequentialists need to justify the common intuitions, by providing a principled explanation as to why choosing 1 death is permissible in Driver and Bystander but not in Bridge.

How non-consequentialists have attempted to explain the common intuitions.

Non-consequentialist Approach 1:

Let’s use Immanuel Kant’s theory!

Immanuel Kant
(1724-1804)

I’m the most famous non-consequentialist.

Immanuel Kant
(1724-1804)

It is morally wrong to treat persons merely as a means.

An example of treating a person merely as a means

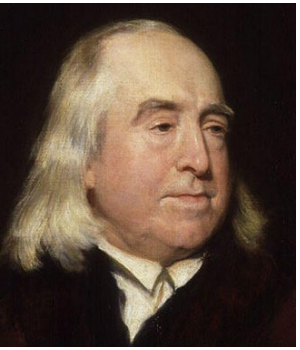
Classic utilitarianism is **context sensitive**.

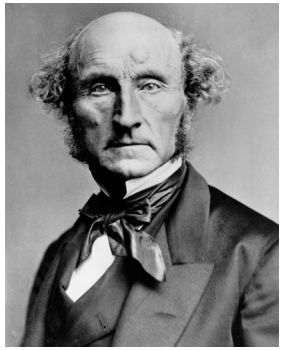
There are no types of action (e.g., torture, robbery) that are always wrong or right. All that matters is whether the action maximizes total net pleasure, which may depend on the particular context.

Abolish the NUS curve!
Or a bomb will go off on campus in an hour.

What is the right thing to do?

friends





It is permissible to torture the friend.

In fact, it is required. It is wrong not to do so.

Not true! Don’t listen to them!!

Immanuel Kant
(1724-1804)

What is the right thing
to do?

Immanuel Kant
(1724-1804)

It is morally wrong to treat persons **merely** as a means.

Immanuel Kant
(1724-1804)

It is morally wrong to treat persons **merely** as a means.

It is controversial what exactly distinguishes between treating a person merely as a means and treating a person as a means but not merely as a means, but many philosophers think that consent is a relevant factor.

You're not expected to know what distinguishes between the two. What you're expected to know is that Kant doesn't think that treating a person as a means is always wrong.

Now, let’s apply Kant’s idea to trolley cases

Immanuel Kant
(1724-1804)

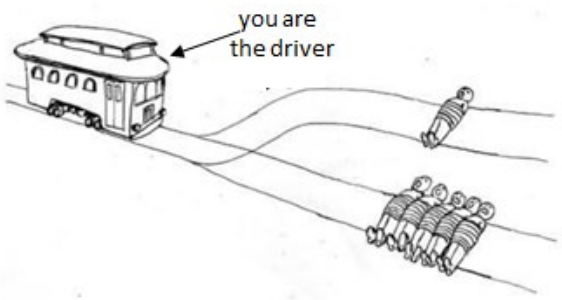
It is morally wrong to treat persons merely as a means.

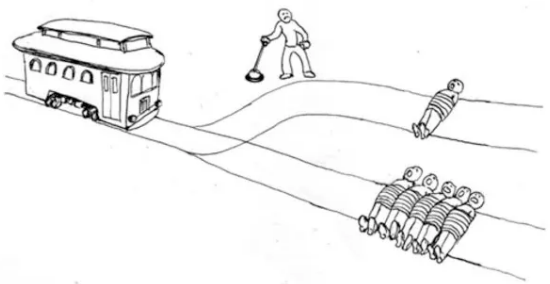
In which case(s) are you treating a person merely as a means?

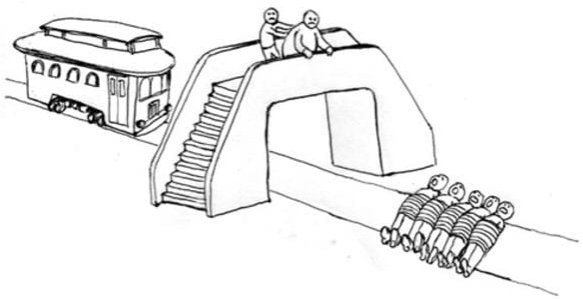
In Driver and Bystander, you're not even treating the person as a means,

so you're not treating the person merely as a means, either.

Roughly, the person's involvement is part of the route by which your plan succeeds
(≈ you can't achieve your goal if the person disappears right before you perform the action)







Immanuel Kant
(1724-1804)

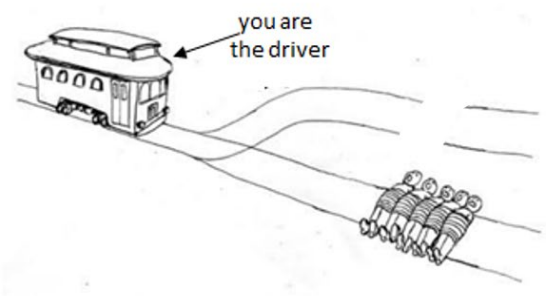
It is morally wrong to treat persons merely as a means.

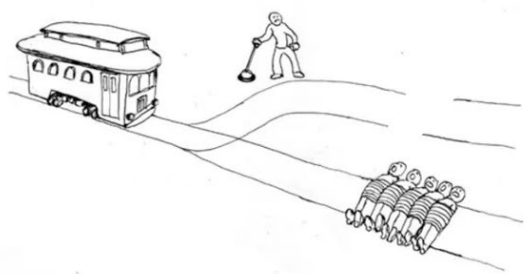
In which case(s) are you treating a person merely as a means?

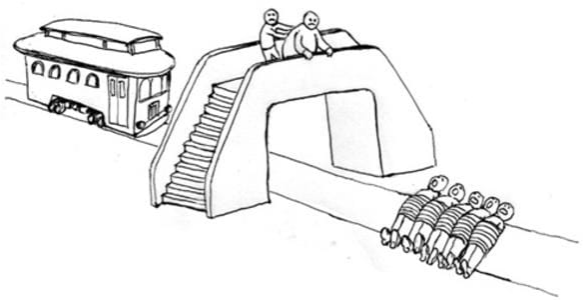
In Driver and Bystander, you're not even treating the person as a means,

so you're not treating the person merely as a means, either.

Roughly, the person's involvement is part of the route by which your plan succeeds
(≈ you can't achieve your goal if the person disappears right before you perform the action)







Immanuel Kant
(1724-1804)

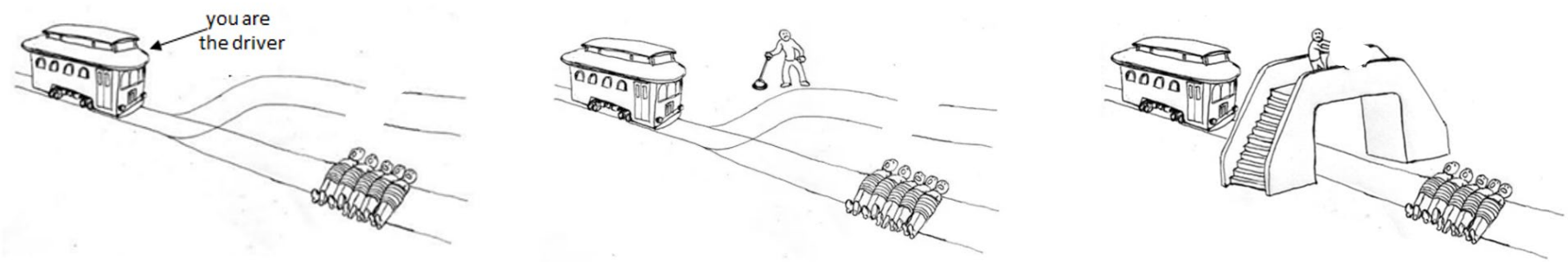
It is morally wrong to treat persons merely as a means.

In which case(s) are you treating a person merely as a means?

In Driver and Bystander, you're not even treating the person as a means,

so you're not treating the person merely as a means, either.

Roughly, the person's involvement is part of the route by which your plan succeeds
(≈ you can't achieve your goal if the person disappears right before you perform the action)



In Bridge, you're treating the person as a means (and probably merely as a means)

Immanuel Kant
(1724-1804)

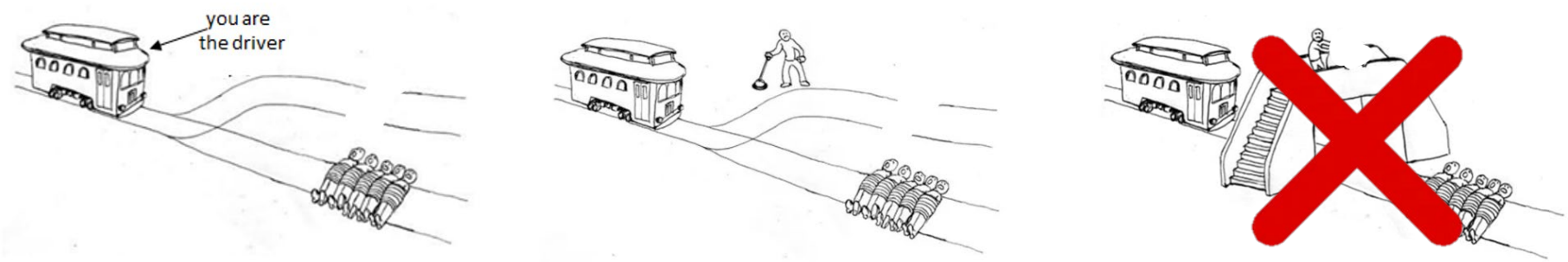
It is morally wrong to treat persons merely as a means.

In which case(s) are you treating a person merely as a means?

In Driver and Bystander, you're not even treating the person as a means,

so you're not treating the person merely as a means, either.

Roughly, the person's involvement is part of the route by which your plan succeeds
(≈ you can't achieve your goal if the person disappears right before you perform the action)



In Bridge, you're treating the person as a means (and probably merely as a means) → wrong

[Side note] It is unclear what Kant would say about Driver and Bystander

< (What philosophers have taken to be) Common Intuitions >

	Option 1 (5 deaths)	Option 2 (1 death)
Driver		✅
Bystander		✅
Bridge	✅	❌

- The common intuitions conflicts with consequentialism, and that supports non-consequentialism to some extent.

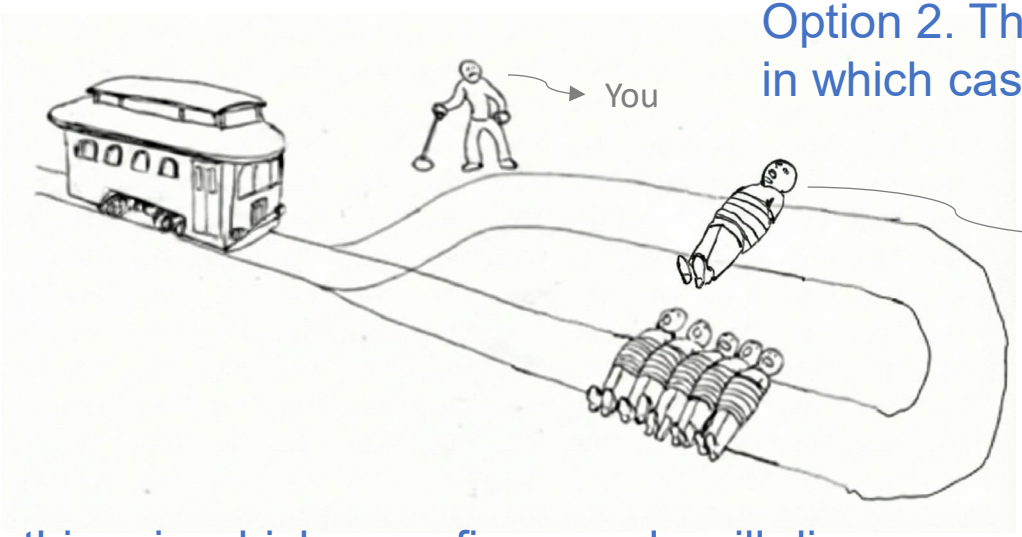
- But non-consequentialists need to justify the common intuitions, by provide a principled explanation as to why choosing 1 death is permissible in Driver and Bystander but not in Bridge.

So far so good.

But here is a challenging case for this Kantian approach.

< Loop >

Option 2. Throw the switch,
in which case one person will die

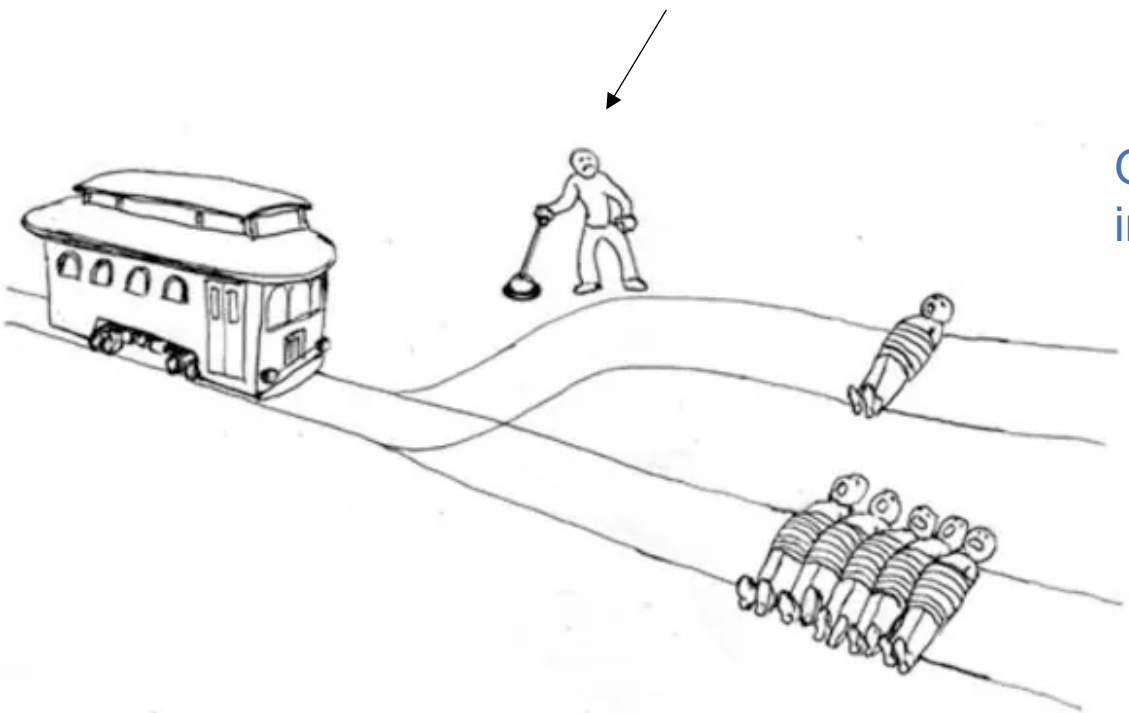


Assume that this person is large enough to stop the trolley.

Option 1. Do nothing, in which case five people will die

< Case 2. Bystander >

You are this bystander



Option 2. Throw the switch,
in which case one person will die

Option 1. Do nothing, in which case five people will die

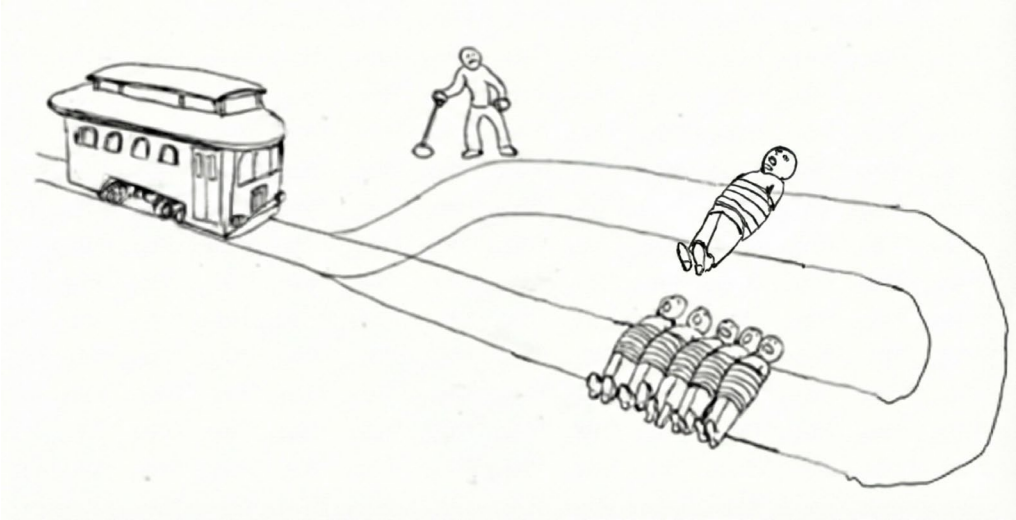
Immanuel Kant
(1724-1804)

It is morally wrong to treat persons merely as a means.

Many think that it is permissible to throw the switch in Loop.

But you're treating the person as a means (and probably merely as a means)

< Loop >



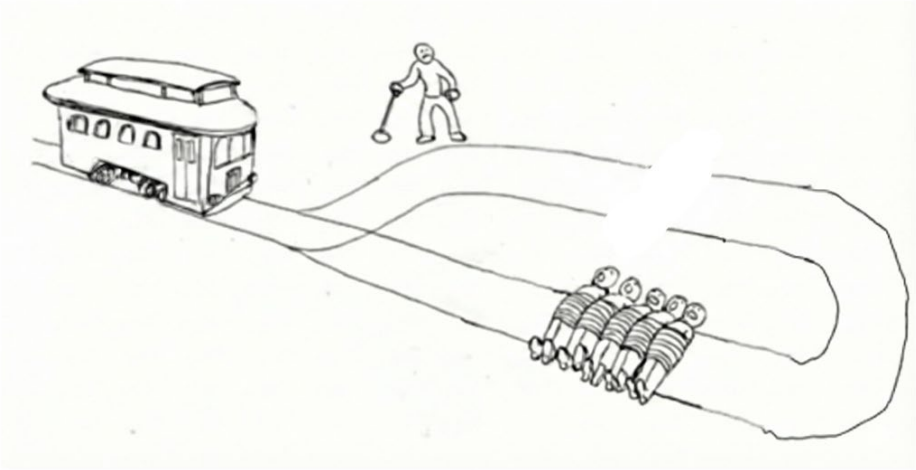
Immanuel Kant
(1724-1804)

It is morally wrong to treat persons merely as a means.

Many think that it is permissible to throw the switch in Loop.

But you're treating the person as a means (and probably merely as a means)

< Loop >



Non-consequentialist Approach 2:

Killing is morally worse than letting die.

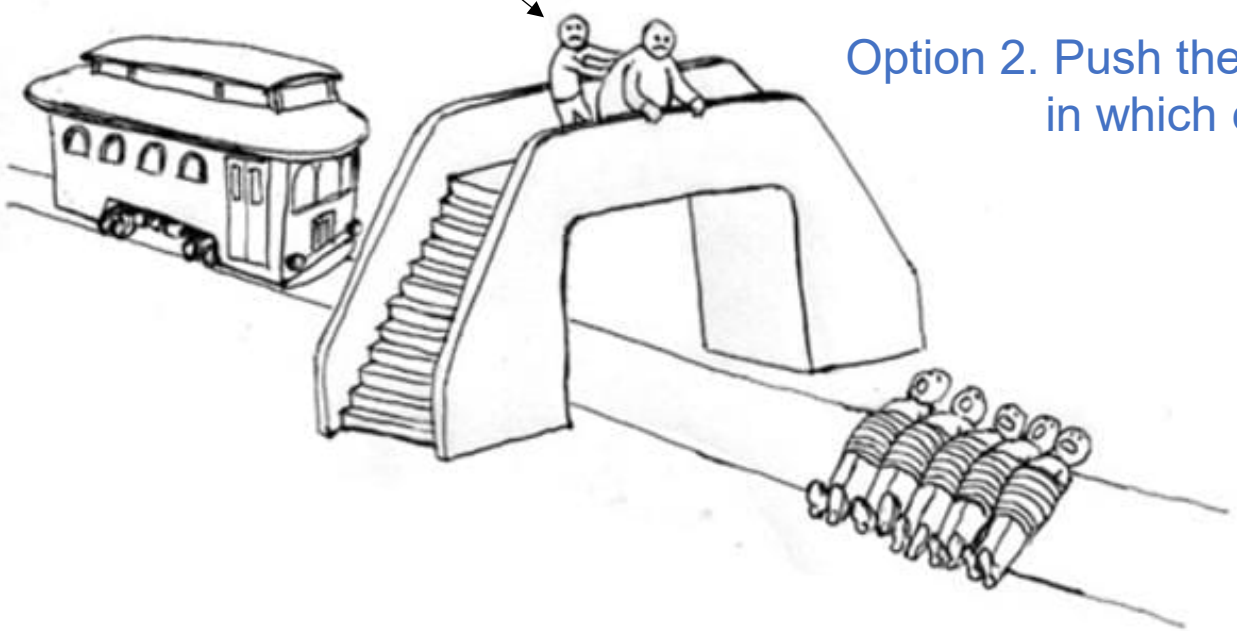
In our course, roughly, you're the cause of the death

Philippa Foot
(1920-2010)

This is the approach I came up with!

< Case 3. Bridge or, as it is commonly called, “Fat Man”>

You are this person



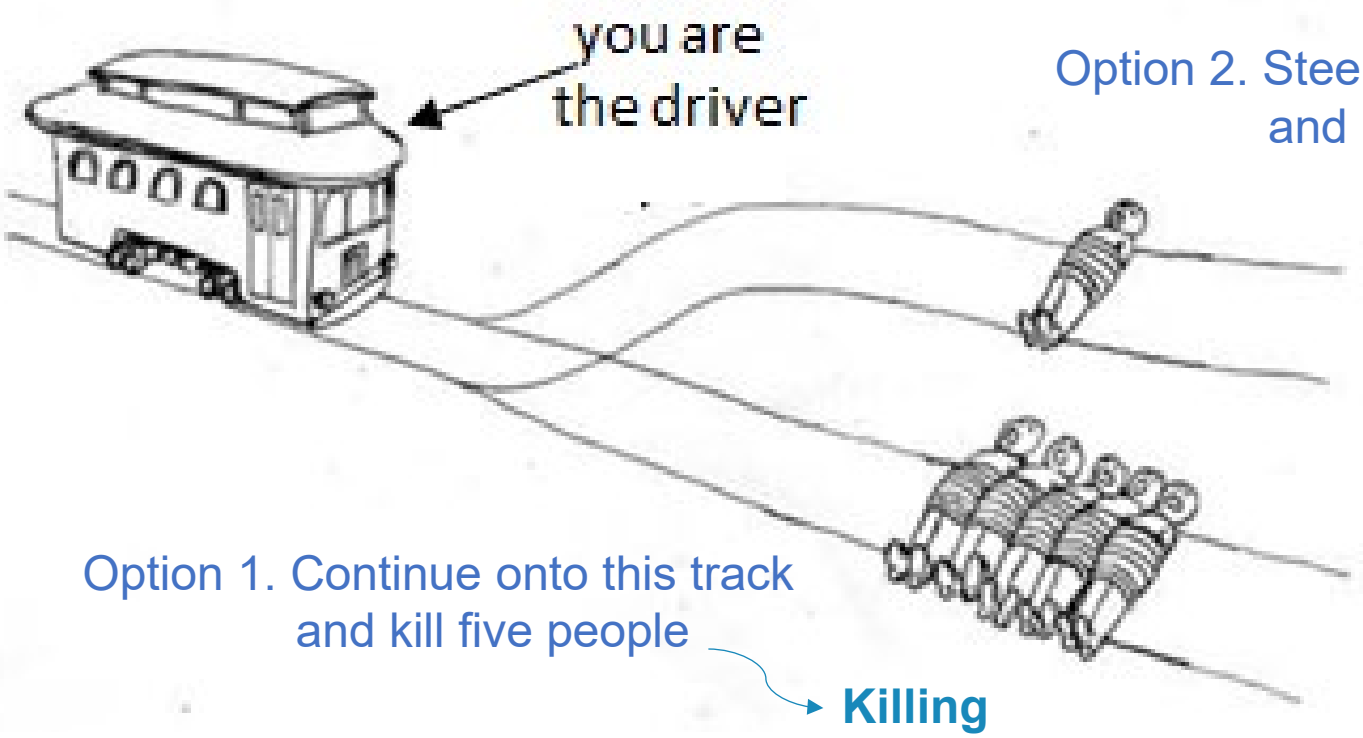
Option 2. Push the large person off the bridge, in which case one person will die

Killing

Option 1. Do nothing, in which case five people will die

Letting die

< Case 1. Driver >



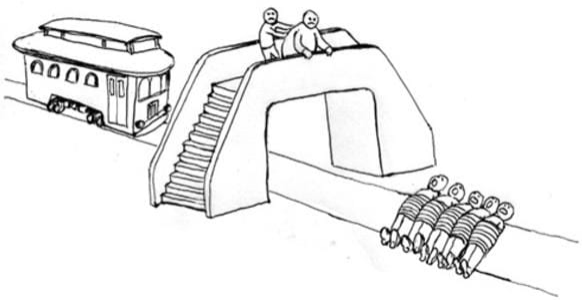
Option 2. Steer onto this side-track
and kill one person

Killing

Option 1. Continue onto this track
and kill five people

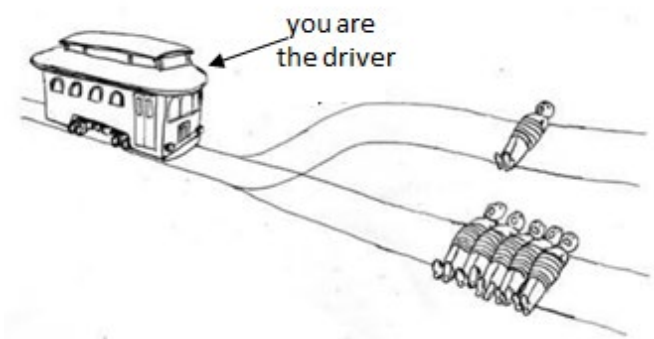
Killing

<Bridge>



VS.

<Driver>



Philippa Foot
(1920-2010)

Killing is worse than letting die.

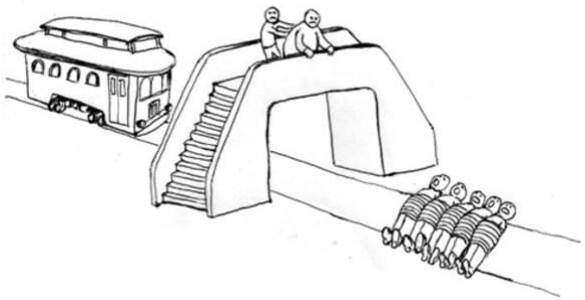
Bridge: letting five die vs. killing one → ✅ letting five die

Drive: killing five vs. killing one → ✅ killing one

Challenge for Approach 2:

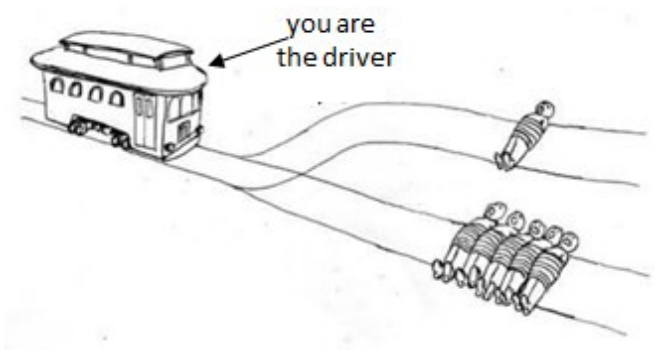
Unable to explain the common intuition about Bystander

<Bridge>



VS.

<Driver>

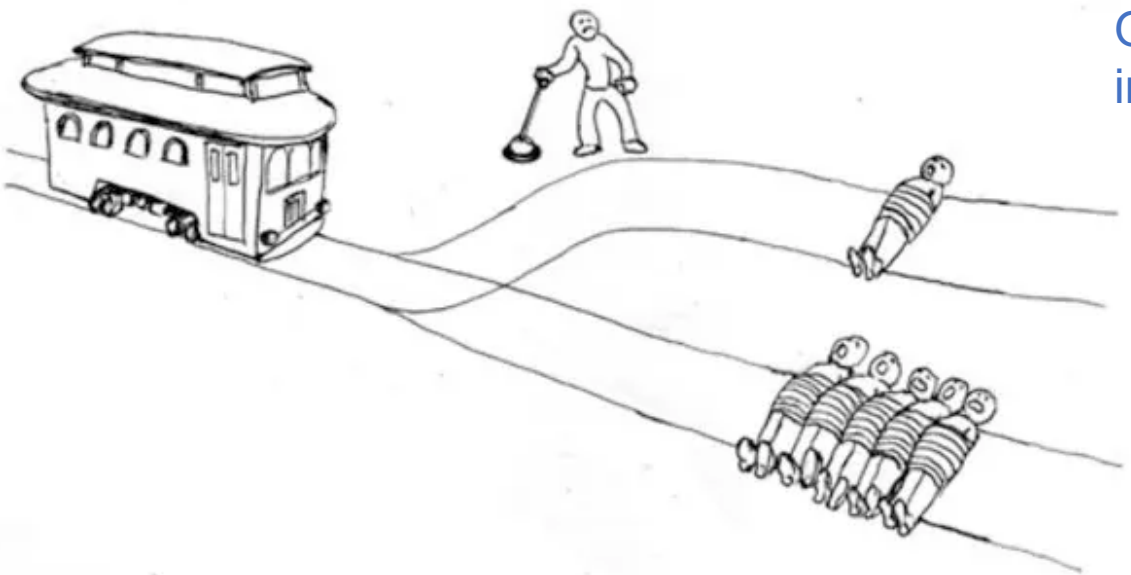


✅ **Letting five die** vs. ❌ killing one

Killing five vs. ✅ **killing one**

< Case 2. Bystander >

You are this bystander



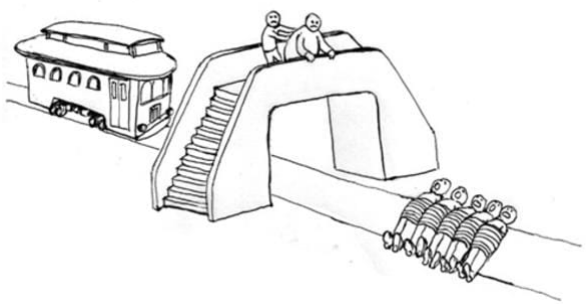
Option 2. Throw the switch,
in which case one person will die

Killing

Option 1. Do nothing, in which case five people will die

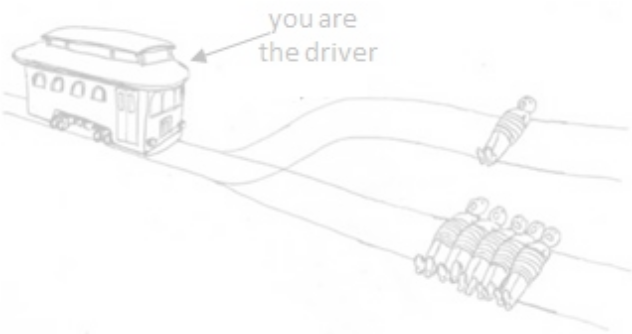
Letting die

<Bridge>



VS.

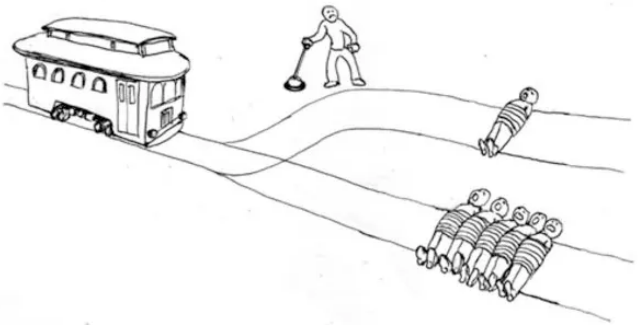
<Driver>



✅ **Letting five die** vs. ❌ killing one

Killing five vs. ✅ **killing one**

<Bystander>



Letting five die vs. ✅ **killing one**

Judith Jarvis Thomson, “Turning the Trolley” (2008)

J. J. Thomson
(1929-2020)

Approach 2 (killing is worse than letting die) is the correct approach because, actually, it is morally wrong for the bystander to throw the switch.

< (What philosophers have taken to be) Common Intuitions >

	Option 1 (5 deaths)	Option 2 (1 death)
Driver		✅
Bystander		✅
Bridge	✅	❌

✅ means morally right (=permissible)

❌ means morally wrong (=impermissible)

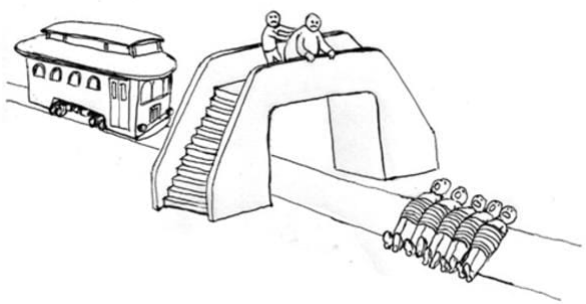
< According to Thomson (2008)>

	Option 1 (5 deaths)	Option 2 (1 death)
Driver		✅
Bystander	✅	❌
Bridge	✅	❌

✅ means morally right (=permissible)

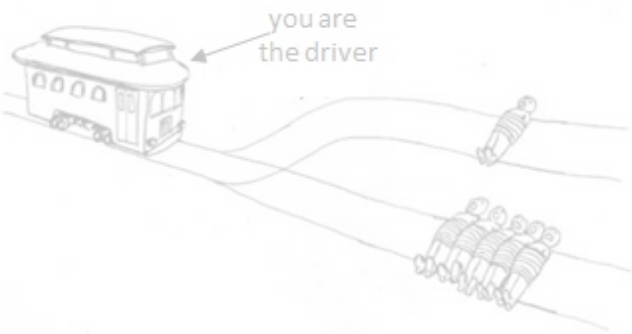
❌ means morally wrong (=impermissible)

<Bridge>



vs.

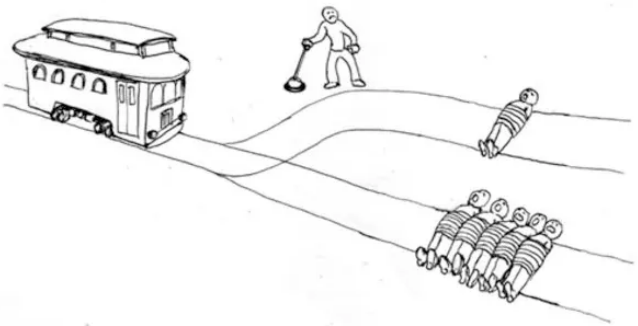
<Driver>



✅ **Letting five die** vs. ❌ killing one

Killing five vs. ✅ **killing one**

<Bystander>

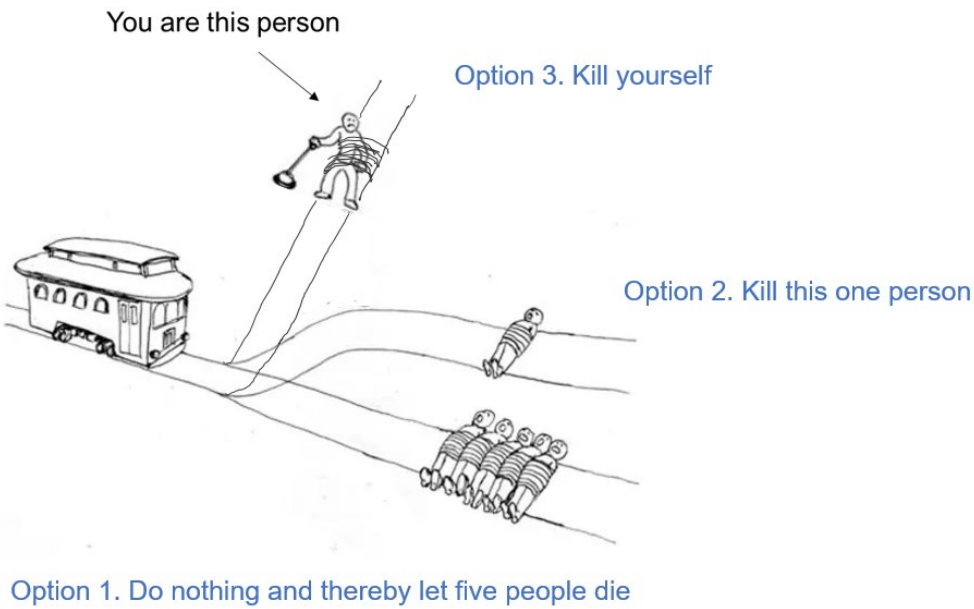


Problem solved!

✅ **Letting five die** vs. ❌ killing one

Thomson's argument as to why it is morally wrong for the bystander to throw the switch.

< Bystander's Three Options >

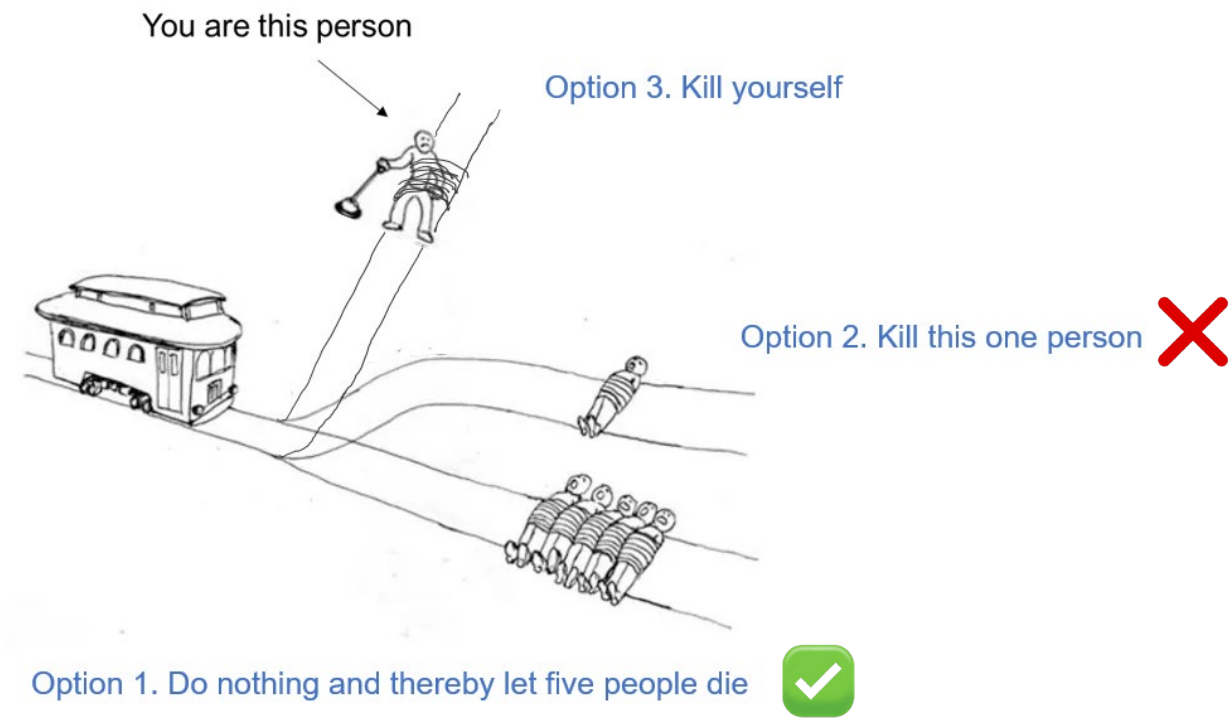


J. J. Thomson
(1929-2020)

"I hope you will agree that choosing (ii) would be unacceptable on the bystander's part. If he can throw the switch to the left and turn the trolley onto himself, how dare he throw the switch to the right and turn the trolley onto the one workman?" (p.364)

"Compare the following possibility. I am asked for a donation to Oxfam. I want to send them some money. I am able to send money of my own, but I don't feel like it. So I steal some from someone else and send that money to Oxfam. That is pretty bad. But if the bystander proceeds to turn the trolley onto the one on the right-hand track in Bystander's Three Options, then what he does is markedly worse, because the cost in Bystander's Three Options isn't money, it is life" (p.365)

< Bystander's Three Options >



J. J. Thomson
(1929-2020)

"On the other hand, morality doesn't require him to choose option (iii)...

So the bystander in Bystander's Three Options may choose option (i)." (p.365)

<Thomson’s argument as to why it is morally wrong to throw the switch in Bystander’s Two Options (= the original Bystander case)>

Premise 1) It is morally wrong to turn the trolley onto another person in Bystander’s Three Options.

Premise 2) If it is morally wrong to turn the trolley onto another person in Bystander’s Three Options, it is morally wrong to turn the trolley onto one person in Bystander’s Two Options.

Conclusion) Therefore, it is it is morally wrong to turn the trolley onto one person in Bystander’s Two Options.

<Thomson's argument as to why it is morally wrong to throw the switch in Bystander's Two Options (= the original Bystander case)>

Premise 1) It is morally wrong to turn the trolley onto another person in Bystander's Three Options.

Premise 2) If it is morally wrong to turn the trolley onto another person in Bystander's Three Options, it is morally wrong to turn the trolley onto one person in Bystander's Two Options.

Conclusion) Therefore, it is it is morally wrong to turn the trolley onto one person in Bystander's Two Options.

J. J. Thomson
(1929-2020)

"Since he wouldn't himself pay the cost of his good deed if he could pay it, there is no way in which he can decently regard himself as entitled to make someone else pay it." (p.366)

What if he *would* pay the cost if he could? May he, then, throw the switch?

"the altruistic bystander is not entitled to assume that the one workman is equally altruistic, and would therefore consent to the bystander's choosing option (ii)." (p.367)

Why, then, do many people think that it is morally *permissible* for the bystander to throw the switch?

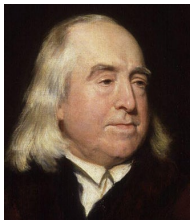
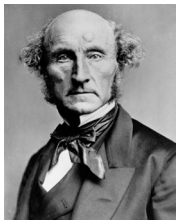
J. J. Thomson
(1929-2020)

It is because the means used in Bystander (i.e., merely turning a trolley or throwing a switch) is not drastic, compared to the means used in Bridge (i.e., pushing a person off the bridge).

But this fact about the means is not morally relevant.

< What utilitarians would say, assuming no indirect consequences>

	Option 1 (5 deaths)	Option 2 (1 death)
Driver		✅
Bystander		✅
Bridge		✅

Thomson, you're totally right about that point
(though not about the killing and letting die distinction.
We don't like that, but it's a topic for another day).

Common intuitions about the trolley cases are affected by
irrelevant factors and, thus, are unreliable.

What to do this week

- There are tutorials this week.

- Do the reading for next lecture

: Rachels, “The Challenge of Cultural Relativism"

(Readings are posted in the “Files” section on Canvas)